

SENATE No. 2316

The Commonwealth of Massachusetts

PRESENTED BY:

Jacob R. Oliveira

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a resilient electric vehicle charging system pilot program and river restoration fund and veterans and emergency responders' fund.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	
<i>Todd M. Smola</i>	<i>1st Hampden</i>	
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>6/20/2025</i>

SENATE No. 2316

By Mr. Oliveira, a petition (accompanied by bill, Senate, No. 2316) of Jacob R. Oliveira and Todd M. Smola for legislation to establish a resilient electric vehicle charging system pilot program and river restoration fund and veterans and emergency responders' fund. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a resilient electric vehicle charging system pilot program and river restoration fund and veterans and emergency responders' fund.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Definitions

2 For the purposes of this Act, the following terms shall have the meanings ascribed to
3 them:

4 1. "Resilient Hydroelectric Power Generation" means generating stations that:

5 a. Are manufactured, installed, and operated in accordance with applicable government
6 and industry standards;

7 b. Are connected to the electric grid and operated in conjunction with an electric
8 company's transmission and distribution system during normal operation of the electrical grid;

9 c. Operate in compliance with standards and requirements established under this Act;

d. Utilize a synchronous generator with black start capability, frequency control, and disconnect capability;

e. Do not include the active use of fossil fuels;

f. Have a nameplate capacity of 2.0 megawatts or less;

g. Do not involve any dam or water diversion structure constructed after December 31, 1997; and

h. Must demonstrate compliance with meeting appropriate and site-specific standards that address adequate and healthy river flows, water quality standards, fish passage, and protection measures, mitigation, and enhancement opportunities in the impacted watershed by obtaining and maintaining a current Low Impact Hydropower Institute (LIHI) certification, provided that:

i. If the generating station is not LIHI certified prior to its participation in the Resilient Electric Vehicle Charging System Pilot Program (the Program), it will submit an application for certification within 3 years from the date of being enrolled in the Program and its ongoing participation in the Program will be contingent on successfully obtaining and maintaining a LIHI certification, including completing any certification conditions in the time prescribed.

2. "Resilient Electric Vehicle Charging System" means an electric vehicle (EV) microgrid designed to provide uninterrupted electric service for EV charging throughout an extended outage.

3. "Extended Outage" means an outage of the electric distribution system that continues for a period of 24 hours or longer.

4. "Uninterrupted" means that the Resilient Electric Vehicle Charging System generates electricity throughout an extended outage, except for momentary interruptions associated with transitions to and from grid-parallel and grid-islanded operations.

5. "EV Microgrid" is a group of energy-generating resources with at least one source of Resilient Hydroelectric Power Generation and energy storage within clearly defined electrical boundaries that acts as a single controllable entity with respect to the grid for the purpose of EV charging and supporting emergency response needs during an extended outage. An EV microgrid can connect and disconnect from the grid to operate in both grid-connected or island-mode.

6. "Charging Revenue" shall constitute all onsite energy sales from EV charging from a Resilient Electric Vehicle Charging System.

7. "Low Impact Hydropower Institute (LIHI)" is a non-profit 501(c)(3) organization whose stated purpose is to reduce the impacts of hydropower generation through the certification of hydropower projects that have avoided or reduced their environmental impacts pursuant to the Low Impact Hydropower Institute's criteria.

SECTION 2. Establishment of the Resilient Electric Vehicle Charging System Pilot Program

1. Program Creation: The Department of Public Utilities (DPU) shall, within 180 days of the enactment of this Act, promulgate rules and regulations to establish the Resilient Electric Vehicle Charging System Pilot Program ("the Program").

2. Program Components:

a. Resilience Adder: Establish a net metering adder for the valuation of uninterrupted Resilient Hydroelectric Power Generation generated within an EV microgrid that participates in the Program.

b. Timely Utility Interconnection Process: Create an expedited interconnection process for Resilient Hydroelectric Power Generation comprising an EV microgrid.

c. Compliance and Operation Rules for Emergency Responders: Develop compliance standards, routine testing requirements, and operational protocols to ensure that EV charging stations are accessible and functional for emergency responders during extended outages. Program compliance will be developed under Section 3 and 4 of these regulations.

d. Support for Resilient Communications: Require that EV microgrids incorporate infrastructure to support resilient radio communications for emergency services during normal operations and during extended outages. In addition, satellite or similar resilient WIFI service shall be installed and provided for free public use during an extended outage as available after emergency service providers.

SECTION 3. River Restoration Fund

1. Establishment: A River Restoration Fund ("the River Restoration Fund") is hereby established to support environmental justice initiatives, river restoration projects, and community education related to energy, the environment, and local industrial history.

2. Funding Mechanism: Participants in the Program shall allocate 5% of revenues received from onsite EV fast charging to the River Restoration Fund.

3. Fund Governance and Oversight:

a. The independent, Massachusetts-based non-profit organization Low Impact Hydropower Institute (LIHI) will manage the River Restoration Fund.

b. LIHI will create the necessary program(s) to select, award, and track funded projects through mechanisms that may include, but will not be limited to, grants, contracts, and cost-share agreements.

c. Entities that are eligible to apply for funding from the River Restoration Fund include, but are not limited to:

1. Non-profit organizations that work on environmental stewardship, river restoration, biodiversity conservation, environmental education, community engagement and outreach on social and environmental issues, and social justice issues;

2. Community-based organizations that work on environmental stewardship, river restoration, biodiversity conservation, environmental education, community engagement and outreach on social and environmental issues, and social justice issues;

3. Local governments;

4. Tribes;

5. Dam owners;

6. Hydropower owners and operators.

d. Eligible entities may apply for funding from the River Restoration Fund for projects related to, but not limited to:

1. River Cleanups: Remove debris and pollutants to improve water quality and aquatic habitats.

2. Climate Resilience: Enhance resilience to climate variability for local communities.

3. Addressing Aging Dam Infrastructure: Fund projects that address safety and environmental concerns associated with aging dam infrastructure, including removal where appropriate.

4. Fish Passage Improvements: Enhance or install structures that allow fish to navigate around dams and barriers or remove select structures with support from the structure owner.

5. Community Outreach and Education: Fund programs that educate the public about renewable energy, environmental stewardship, and the historical significance of local industrial development.

6. Environmental Justice: Fund projects and programs that provide benefits to historically marginalized communities and communities disproportionately affected by environmental degradation and lack of investment.

e. Reporting requirements:

1. LIHI will create, and fund recipients will adhere to, the necessary reporting requirements for projects that receive funds from the River Restoration Fund.

2. Annually, LIHI will publish and submit a report on the River Restoration Fund to the DPU outlining:

- i. The budget and available funds;
- ii. A summary of projects that applied for funding;
- iii. A summary of projects that were selected for and awarded funding;
- iv. Progress report on the projects that were awarded funding;
- v. The outcomes and impact of projects that were awarded funds upon their completion.

SECTION 4. Veterans and Emergency Responders' Fund

1. Establishment: A Veterans and Emergency Responders' Fund ("the Veterans and Emergency Responders' Fund") is hereby established to directly support veterans and emergency responders, recognizing their contributions during emergency/national security situations, addressing their needs, and providing support for robust emergency response.

2. Funding Mechanism: Program participants shall allocate 5% of revenues received from onsite EV fast charging stations to the Veterans and Emergency Responders' Fund.

3. Fund Governance and Oversight: Any funds related generated under this section shall be distributed to the state operated Veteran's homes on an equal basis, to their special account, up to \$500,000 for each home. Any excess funds over \$500,000 for each state operated Veteran's homes shall be placed in the special trust fund subject to the control of the Secretary of Veterans Services.

SECTION 5. Reporting and Accountability

- 130 a. Annual Report: The DPU shall submit an annual report to the Governor and the
131 Legislature detailing:
- 132 a. The number of EV microgrids established under the Program;
- 133 b. The estimated amount of energy generated and consumed;
- 134 c. Financial contributions made to the River Restoration Fund and the Veterans and
135 Emergency Responders;
- 136 d. General progress update on river restoration and community projects funded based on
137 LIHI's annual report.

138 SECTION 6. Effective Date

139 This Act shall take effect immediately upon its passage.